

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Samuel Edison	Team: Squad #06	CCRB Case #: 202309740	☒ Force ☐ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Wednesday, 09/13/2023 11:11 PM	Location of Incident: § 87(2)(b)	18 Mo. SOL 3/13/2025	Precinct: 81
Date/Time CV Reported Mon, 10/02/2023 3:37 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Mon, 10/16/2023 9:42 AM

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. LT Gary Vanzanten	00000	934234	081 PCT
2. SGT Sohaib Rasool	01572	959920	081 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. PO Dylan Mattern	26213	964150	081 PCT

Officer(s)	Allegation	Inv. Div. Recommendation
A . LT Gary Vanzanten	Abuse: Lieutenant Gary Vanzanten entered § 87(2)(b) in Brooklyn.	A . Substantiated
B . LT Gary Vanzanten	Force: Lieutenant Gary Vanzanten used physical force against § 87(2)(b)	B . Substantiated
C . LT Gary Vanzanten	Abuse: Lieutenant Gary Vanzanten conducted a retaliatory arrest against § 87(2)(b)	C . Substantiated
D . LT Gary Vanzanten	Abuse: Lieutenant Gary Vanzanten issued an unlawful summons to § 87(2)(b)	D . Substantiated
E . SGT Sohaib Rasool	Abuse: Sergeant Sohaib Rasool did not obtain medical treatment for § 87(2)(b)	E . Substantiated

Case Summary

On October 2, 2023, Sgt. Syed Ali of the 81st Precinct submitted this complaint to IAB on behalf of § 87(2)(b). On October 16, 2023, it was received at the CCRB via IAB Log #§ 87(2)(b).

On September 13, 2023, at approximately 11:00 p.m., Lt. Gary Vanzanten and PO Dylan Mattern of the 81st Precinct responded to a 311 call for a noise complaint at § 87(2)(b) in Brooklyn. The officers went up the § 87(2)(b) floor and entered the outdoor area of § 87(2)(b) apartment (**Allegation A: Abuse of Authority, Substantiated**). Lt. Vanzanten grabbed § 87(2)(b) by the shirt and dragged him back into the building through the door and threw him onto the ground of the § 87(2)(b) floor hallway (**Allegation B: Force, Substantiated**). The officers placed § 87(2)(b) in handcuffs and brought him back to the stationhouse, where he was eventually issued a summons for disorderly conduct (**Allegations C and D: Abuse of Authority, Substantiated**). While at the stationhouse, Sgt. Sohaib Rasool ignored § 87(2)(b) requests for an ambulance and failed to obtain medical attention for him (**Allegation E: Abuse of Authority, Substantiated**). § 87(2)(b) was released later that night after being issued the summons for disorderly conduct.

BWC of the incident was obtained and is located in IAs 77-79 (BR 01-03).

Findings and Recommendations

Allegation (A) Lieutenant Gary Vanzanten entered § 87(2)(b) § 87(2)(b) in Brooklyn.

PO Mattern's BWC (BR 01), beginning at the 0:50 second mark, shows him and Lt. Vanzanten entering the lobby of § 87(2)(b) through the front door behind § 87(2)(b). At the 1:15 minute mark, the officers walk up the stairs behind § 87(2)(b) while they exchange words, but § 87(2)(b) walks ahead of them and disappears from view. At the 2:00 minute mark, the officers reach the § 87(2)(b) floor and walk over to a door that has an "Emergency Exit Only" sign on the window with a handwritten sign that says "Do Not Enter! Rooftop Upstairs" directly underneath it. Lt. Vanzanten opens the door and walks out onto the outdoor patio where there are a group of individuals including § 87(2)(b). At the 2:20 minute mark, § 87(2)(b) walks up to Lt. Vanzanten and tells him they cannot walk onto his private property, and that they need to wait in the hallway. Lt. Vanzanten tells § 87(2)(b) that the outdoor patio is not his private property, and § 87(2)(b) replies that it is. Lt. Vanzanten sticks his arm outward and tells § 87(2)(b) to back up, and § 87(2)(b) explains that the building rooftop is located on a higher floor. § 87(2)(b) repeats that the officers need to step back into the hallway, but one of his friends steps in front of him and apologizes on his behalf. Lt. Vanzanten tells § 87(2)(b) that his behavior is about to be deemed disorderly conduct. At the 3:30 minute mark, three of § 87(2)(b) friends are standing in between him and the officers, and one of his friends tells the officers that it is illegal for them to enter private property. Lt. Vanzanten replies that the entire property is owned by the building, and the friend replies that they pay rent. Lt. Vanzanten asks if there is a way to enter the outdoor patio directly from § 87(2)(b) apartment, but there is no response because another of his friends asks a different question. At the 3:50 minute mark, PO Mattern says that they are not trespassing because the door was open.

Lt. Vanzanten's BWC (BR 02), beginning at the 4:00 minute mark, shows a male individual walking up to the officers and identifying himself as one of the tenants. He tells the officers that he can speak to them in the hallway because they are illegally trespassing into his apartment, and Lt. Vanzanten asks to be shown where the entrance to their apartment is located on the outdoor patio. Before he can respond, Lt. Vanzanten tells him not to touch him, and the tenant immediately puts his hands in the air and apologizes.

§ 87(2)(b) testified (BR 04) that he observed Lt. Vanzanten and PO Mattern standing on the street outside of § 87(2)(b) in Brooklyn as he was walking up to the building. § 87(2)(b) was returning home after going to McDonalds, and a group of his friends were on the outdoor patio of his apartment. The officers told § 87(2)(b) that they received a noise complaint at this location, and § 87(2)(b) replied that it was probably coming from him and his friends. He opened the front door and entered the building, and the officers walked in behind him before the door locked. § 87(2)(b) began walking up the stairs to his apartment on the § 87(2)(b) floor, and he argued back and forth with the officers as they followed behind him up the stairs. § 87(2)(b) reached the § 87(2)(b) floor and entered his apartment through the front door. There was an emergency exit door next to his apartment door that led directly to the outdoor patio connected to his apartment, and there was a handwritten sign that read not to enter because access to the public rooftop was on the § 87(2)(b) floor. § 87(2)(b) walked out onto the outdoor patio through his apartment where approximately nine of his friends were located. A few seconds later, Lt. Vanzanten and PO Mattern opened the emergency exit door and walked out onto the outdoor patio. § 87(2)(b) told the officers that they needed to step back into the hallway because they were on his private property, and the officers replied that they were just responding to a noise complaint and that § 87(2)(b) was making them mad. Some of § 87(2)(b) friends began reiterating that the officers were illegally entering the apartment, and they went back and forth with the officers for approximately two minutes. At that point, § 87(2)(b) took out his phone and began to record the interactions. The officers remained on the outdoor patio right in front of the emergency exit door.

As there was comprehensive footage via BWC that captured the incident, no further civilian statements were required.

Lt. Vanzanten testified (BR 05) that at approximately 11:00 p.m., he and PO Mattern responded to a 311 complaint of a loud party taking place on the rooftop of § 87(2)(b) in Manhattan. They arrived at the location and listened from the sidewalk to see if they could hear the noise, but Lt. Vanzanten did not remember if they heard anything. Shortly after they arrived, § 87(2)(b) walked up to the front door from down the street and asked the officers if they were responding to a noise complaint. Lt. Vanzanten explained that they were responding to a 311 complaint, and § 87(2)(b) replied that he would tell the people involved to lower the volume of the music. § 87(2)(b) opened the front door and entered the lobby, but he extended his arms across the doorway to block the officers from entering behind him. Lt. Vanzanten moved § 87(2)(b) out of the way and entered the building, and he warned § 87(2)(b) not to prevent a police officer from entering a multiple dwelling residential building. The officers followed § 87(2)(b) up the stairs to the § 87(2)(b) floor, and they heard voices coming from behind an emergency exit door positioned next to § 87(2)(b) apartment door. Lt. Vanzanten did not see which door § 87(2)(b) had gone through, but he assumed it was the emergency exit door because he had heard the push of the bar along the door. Lt. Vanzanten opened the emergency exit door, and he and PO Mattern stepped out onto the outdoor patio. § 87(2)(b) was there with a group of young adults, but there did not appear to be any loud music or excessive noise coming from them. Before he could explain the reason for their presence or issue a verbal warning, § 87(2)(b) began screaming obscenities at Lt. Vanzanten. One of the young adults came up to the officers and said that they had illegally entered § 87(2)(b) apartment, and Lt. Vanzanten replied that the rooftop was a common area for all residents of the building.

As Lt. Vanzanten was the supervisor on scene and he was the subject of this allegation, no further testimony was needed to make an affirmative finding into this allegation.

311 Complaint # § 87(2)(b) notes that there was a “rooftop party with a lot of yelling and loud music” at § 87(2)(b) in Brooklyn (BR 06).

It is undisputed that Lt. Vanzanten opened the emergency exit door on the § 87(2)(b) floor and entered the outdoor patio area. It is also undisputed that there was a handwritten sign on the door that said, “Do not enter, rooftop § 87(2)(g)

it is therefore recommended that **Allegation A** be closed as **Substantiated**.

Allegation (C) Abuse of Authority: Lieutenant Gary Vanzanten arrested § 87(2)(b) unlawfully.

At the 4:05 minute mark, § 87(2)(b) walks over to PO Mattern and uses his phone to record his badge. At the 4:15 minute mark, § 87(2)(b) walks over to Lt. Vanzanten and says he needs his

shield number. Lt. Vanzanten replies that he does not have a badge number, but he verbally provides his name and command. § 87(2)(b) held his phone up towards Lt. Vanzanten and says that he is trying to capture the badge on his phone. Lt. Vanzanten pushes § 87(2)(b) in the chest backwards and tells him that he needs to back up while recording his badge. § 87(2)(b) moves behind several of his friends, and Lt. Vanzanten tells § 87(2)(b) not to get into his face. § 87(2)(b) shouts from behind his friends that they are on “my fucking property, bro.” At the 4:35 minute mark, Lt. Vanzanten reaches out, grabs § 87(2)(b) by the shirt, and begins pulling him forward. There are several individuals in between Lt. Vanzanten and § 87(2)(b) and one of them is pulled forward with § 87(2)(b) as Lt. Vanzanten drags him by the shirt. Lt. Vanzanten continues pulling § 87(2)(b) by the shirt through the emergency exit door, and both § 87(2)(b) and the other individual fall to the ground in the hallway. At the 4:50 minute mark, § 87(2)(b) is in a sitting position while Lt. Vanzanten continues pulling him by the shirt, and his shirt can be seen completely ripped at the front chest area. At the 7:05 minute mark, one of § 87(2)(b) friends asks PO Mattern why § 87(2)(b) is being arrested, and PO Mattern replies that he is being arrested for disorderly conduct because he got in Lt. Vanzanten’s face.

At the 5:15 minute mark, Lt. Vanzanten places § 87(2)(b) in handcuffs while he is sitting on the floor of the hallway. Lt. Vanzanten lifts § 87(2)(b) up to a standing position and escorts him down the stairs. As they are walking down the stairs, one of § 87(2)(b) friends asks why § 87(2)(b) is being arrested, and Lt. Vanzanten replies that he is being arrested for disorderly conduct. At the 7:05 minute mark, one of § 87(2)(b) friends comes up to Lt. Vanzanten while he is standing outside his police vehicle, and Lt. Vanzanten explains that § 87(2)(b) is being charged with disorderly conduct for violent and tumultuous behavior. § 87(2)(b) friend says that the officers shoved § 87(2)(b) first, and Lt. Vanzanten replies that § 87(2)(b) committed disorderly conduct by putting the phone in his face and refusing to back up.

§ 87(2)(b) testified that after he held up his phone to record the officers, he took a step towards the officers with his phone pointed at them and asked for their names and shield numbers. PO Mattern turned to show § 87(2)(b) his badge, and § 87(2)(b) captured it on his phone. § 87(2)(b) then took a step to the side towards Lt. Vanzanten and captured his badge on the phone as well. Lt. Vanzanten immediately pushed § 87(2)(b) backwards in the chest and told him that he needed to back up if he wanted to record their badges. As he was pushed backwards, § 87(2)(b) moved behind his friends so that they stood between him and Lt. Vanzanten. At that point, Lt. Vanzanten grabbed § 87(2)(b) by the shirt and began pulling him forwards towards the emergency exit door. One of § 87(2)(b) friends that stood between them was knocked to the ground as Lt. Vanzanten dragged § 87(2)(b) forward by the shirt. Lt. Vanzanten pulled § 87(2)(b) through the emergency exit door and into the § 87(2)(b) floor hallway, and § 87(2)(b) ripped in half along his chest as a result of Lt. Vanzanten grabbing it. Once he was in the hallway, Lt. Vanzanten placed him in handcuffs and brought him downstairs. The officers placed him in the back of the police vehicle and transported him to the stationhouse. § 87(2)(b) was placed in a holding cell for approximately one hour, and he was eventually released with a summons for disorderly conduct.

Though § 87(2)(b) alleged his shirt was ripped, as this occurred during the pulling of § 87(2)(b) the investigation determined this was an incidental act and no property damage allegation was pleaded.

Lt. Vanzanten testified that § 87(2)(b) continued screaming, and the entire group of young adults came up to the officers by the emergency exit doorway. At that point, Lt. Vanzanten determined that it had become a potentially dangerous situation due to the large crowd surrounding the officers. Specifically, the individuals were close enough to the officers that they physically touched Lt.

Vanzanten's arm at certain points. § 87(2)(b) never touched Lt. Vanzanten, but he held up his phone towards the officers and began recording their badges. Lt. Vanzanten extended his arm outwards into § 87(2)(b) chest to create a safe distance between them, and he told § 87(2)(b) to record their badges from a further distance. § 87(2)(b) moved behind the other young adults standing face to face with the officers, and he began screaming again and inadvertently spit at Lt. Vanzanten's face. Throughout the entire interaction, § 87(2)(b) friends were trying to calm him down, and it was clear to Lt. Vanzanten that § 87(2)(b) was the primary antagonist of the group. At that point, Lt. Vanzanten decided to place § 87(2)(b) under arrest for disorderly conduct due to behavior that Lt. Vanzanten described as violent and threatening behavior. Although Lt. Vanzanten could have arrested § 87(2)(b) for OGA or disorderly conduct at any time leading up to that point, he had been using his discretion until it became clear that § 87(2)(b) was not going to calm down. Furthermore, due to the large group in a confined space, Lt. Vanzanten determined that it was not safe to issue a summons to § 87(2)(b) at that location, and that it would be safer to remove him to the stationhouse. Lt. Vanzanten grabbed § 87(2)(b) to try and place him in handcuffs, but § 87(2)(b) immediately pulled away. Lt. Vanzanten did not remember if he grabbed § 87(2)(b) by the shirt, but he began pulling § 87(2)(b) towards the doorway. At that point, one of the female young adults grabbed hold of § 87(2)(b) shirt, which caused § 87(2)(b) to fall to the ground in the hallway and rip the front of his shirt. Lt. Vanzanten grabbed § 87(2)(b) underneath the shoulders to prevent him from hitting the ground, and PO Mattern pulled the female young adult off of § 87(2)(b). Lt. Vanzanten placed § 87(2)(b) in handcuffs and brought him back to the stationhouse in the back of his police vehicle. Back at the stationhouse, Lt. Vanzanten confirmed that § 87(2)(b) had no prior arrests, and he instructed PO Mattern to issue him a summons for disorderly conduct. § 87(2)(b) was provided with the summons and released later that night.

Criminal Summons #§ 87(2)(b) was issued by PO Mattern to § 87(2)(b) for disorderly conduct Penal Law 240.20. The narrative states that § 87(2)(b) "did continuously scream and curse putting hands on officers causing a crowd to form while officers were conducting an investigation," and that § 87(2)(b) "did cause annoyance and alarm to officers." (BR 07).

TRI Report #§ 87(2)(b) was prepared by Captain Stephen Leuze of the 81st Precinct. Under the details of the incident, the narrative notes that § 87(2)(b) was arrested "after continuously refusing to back up after putting his hands on officers and then spitting on Lieutenant Vanzanten while yelling at him. Subject refused to comply with officer's commands and pulled back causing officers to forcibly take him down to control and detain him. Subject suffered a minor abrasion to his left arm from his shirt being pulled." (BR 08)

Officers may use force when it is reasonable to ensure the safety of a member of the service or a third person. In situations where it is not safe or appropriate to use de-escalation techniques, officers will use only reasonable force necessary to gain control of a subject. In determining whether the use of force is reasonable, some of the following factors should be considered: nature and severity of the circumstance, actions taken by the subject, immediacy of the perceived threat or harm to the subject or member of service, and number of subjects in comparison to officers, Patrol Guide Procedure 221-01 (BR 12).

§ 87(2)(g)

§ 87(2)(g) BWC confirms § 87(2)(b) testimony that Lt. Vanzanten grabbed § 87(2)(b) by the shirt and pulled him forward through several of his friends, and that Lt. Vanzanten did this without any sort of verbal warning or command for § 87(2)(b) to surrender himself for arrest. § 87(2)(g)

§ 87(2)(g)

It is therefore recommended that **Allegation B** be closed as **Substantiated**.

A person is guilty of disorderly conduct when, with the intent to cause public inconvenience, annoyance or alarm, or recklessly creating a risk thereof, he or she engages in violent, tumultuous or threatening behavior, uses abusive or obscene language in a public place, congregates with other persons in a public place and refuses to comply with a lawful order of the police to disperse, or creates a hazardous or physically offensive condition by an act which serves no legitimate purpose, NY CLS Penal Law § 240.20 (BR 13). In order to charge a person with disorderly conduct, officers must find that the disruptive statements or behavior made by the person were of a public rather than individual dimension, People v. Baker, 20 N.Y.3d 254 (2013) (BR 14). In order for officers to have probable cause to arrest a person for disorderly conduct, the circumstances must indicate that the individual was intentionally or recklessly creating a substantial risk that public inconvenience, annoyance, or alarm would occur, People v. Delhall, 131 A.D.2d 870 (1987) (BR 15).

§ 87(2)(g)

BWC confirms Lt. Vanzanten's testimony that § 87(2)(b) did not make physical contact with him, and that Lt. Vanzanten told him to back up while § 87(2)(b) was trying to record his badge on his phone. However, BWC does not show § 87(2)(b) repeatedly refuse to back up or continue to get into Lt. Vanzanten's personal space. Rather, after being told to back up by Lt. Vanzanten, § 87(2)(b) stepped behind several of his friends and remained behind them up until Lt. Vanzanten decided to place him under arrest. § 87(2)(g)

BWC shows Lt. Vanzanten touch the top of his head shortly after § 87(2)(b) shouts at him from behind his friends, and Lt. Vanzanten reaches out to grab § 87(2)(b) immediately after this occurred. § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

It is therefore recommended that **Allegations C and D** be closed as **Substantiated**.

Allegation (E) Abuse of Authority: Sergeant Sohaib Rasool did not obtain medical treatment for § 87(2)(b)

PO Jason Descul of the 81st Precinct's BWC (BR 03), beginning at the 3:10 minute mark, shows Sgt. Rasool standing behind the front desk and asking § 87(2)(b) if he needs any medical attention. An officer is escorting § 87(2)(b) away from the desk as Sgt. Rasool says this, and § 87(2)(b) replies that he does want medical attention because his shirt was ripped off. Sgt. Rasool does not respond, and § 87(2)(b) is brought into the holding cell area.

§ 87(2)(b) testified (BR 04) that once he arrived at the stationhouse, he was brought to the front desk. Sgt. Rasool was behind the front desk and asked § 87(2)(b) if he needed medical attention. § 87(2)(b) replied that he did, but Sgt. Rasool did not respond, and another officer escorted him to the holding cells. After waiting in the holding cell for approximately one hour, § 87(2)(b) did not receive any medical attention, and none of the officers followed up on his request. § 87(2)(b) observed some of his friends who had been with him on the rooftop patio arrive at the stationhouse and tell some of the officers that he was diabetic. Another officer came over and took pictures of scratches on his arm from the incident, but there was no mention of him receiving any medical attention. Shortly after, § 87(2)(b) was released from the holding cells and issued a criminal summons for disorderly conduct. He left the stationhouse without ever receiving any medical treatment.

Sgt. Rasool testified (BR 16) that on September 13, 2023, he served as the 81st Precinct Desk Sergeant and was stationed at the front desk. At approximately 11:15 p.m., Lt. Vanzanten and PO Mattern brought § 87(2)(b) into the stationhouse in handcuffs. At the front desk, § 87(2)(b) pedigree information was obtained, and Sgt. Rasool asked him if he needed any medical attention. As the desk sergeant, Sgt. Rasool was responsible for obtaining medical attention for any detainees who need or request it. § 87(2)(b) replied that he wanted medical attention for his ripped shirt, but he did not specify any injuries or pain that he suffered from. Sgt. Rasool did not follow up with § 87(2)(b) because a ripped shirt did not qualify as an injury, and § 87(2)(b) was brought into the holding cells by another officer. Sgt. Rasool did not have any further interactions with § 87(2)(b) and he did not request EMS or obtain any other form of medical attention for him. While § 87(2)(b) was in the holding cells, Sgt. Rasool did not follow up with him about any injuries, and he did not direct any officers to follow up on any injuries he may have suffered. Sgt. Rasool did not observe any physical bruises or injuries on § 87(2)(b) at any point.

When a person is removed to the stationhouse following an arrest, officers are required to inquire if medical treatment is needed, and to immediately request EMS if necessary, Patrol Guide Procedure

208-02 (BR 17).

It is undisputed that Sgt. Rasool asked § 87(2)(b) if he needed medical attention, and that § 87(2)(b) replied that he did. Sgt. Rasool testified that he was responsible for obtaining medical attention for any arrested individuals lodged in the holding cells, and that he did not request EMS for § 87(2)(b) because he did not provide an injury or reason that he needed medical treatment. BWC confirms that all § 87(2)(b) said to Sgt. Rasool was that he needed medical attention because his shirt was ripped. However, § 87(2)(b) was in the process of being taken away from the front desk when he made the statement, and Sgt. Rasool did not follow up with § 87(2)(b) or attempt to gain any clarification as to the reason he needed medical attention. § 87(2)(g)

It is therefore recommended that **Allegation E** be closed as **Substantiated**.

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party (BR 18).
- Lt. Vanzanten has been a member of service for 20 years and has been a subject in 15 CCRB complaints and 33 allegations, none of which were substantiated (BR 19).
- Sgt. Rasool has been a member of service for eight years and has been a subject in six CCRB complaints and seven allegations, none of which were substantiated (BR 20).

Mediation, Civil, and Criminal Histories

- § 87(2)(b) declined to mediate this complaint.
- As of March 11, 2024, the New York City Office of the Comptroller has no record of a Notice of Claim being filed in regards to this incident (BR 21).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

RPBP History

- This complaint did not contain any allegations of Racial Profiling/Bias-Based Policing.

Squad No.: 6

Investigator:	<u>Samuel Edison</u>	<u>Investigator Edison</u>	<u>04/25/2024</u>
	Signature	Print Title & Name	Date

Squad Leader:	<u>Jessica Peña</u>	<u>IM Jessica Peña</u>	<u>4/25/2024</u>
	Signature	Print Title & Name	Date

Reviewer:	<u></u>	<u></u>	<u></u>
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Squad No.: 6
Signature

Print Title & Name

Date